TOWNSHIP OF LINCOLN
CLARE COUNTY
175 LAKE GEORGE AVE., P.O. BOX 239
LAKE GEORGE, MI 48633

phone: [989] 588-9841 website: www.lincolntwp.com

Lincoln Township Planning Commission

Phil Blaisdell – Chair ***TBA*** – Member
Gary Szczepanski – Secretary ***Tami McCaslin*** – ZBA ex Officio
Mike Tobin – Township Board ex Officio

Dick Hassberger – Zoning Administrator ***Deb Trim –*** Ordinance Enforcement
Deb Sherrod – Recording Secretary

Regular Meeting – Tuesday, February 14, 2023, at 7:00 pm. Called to order at 7:00 pm by Chair Blaisdell.

Roll Call:
Present – Blaisdell, McCaslin, Szczepanski (Zoom), Tobin, Hassberger, Sherrod
Absent – Trim
Public – 15 in person; 5 via Zoom

Public Hearing: Chair Blaisdell opened the public hearing concerning the removal of the R-2A zoning designation.

Chair's Opening Remarks:

In 2016 the Township worked on updates to ordinance 44.

New language addressed camping on lots as any 30 days in a 90-day period.

Concern was raised by White Birch representatives that the new policy was too restrictive and would destroy White Birch as they knew it.

After much debate and discussion, a solution to create a new residential zoning district for White Birch sections called R2A.

R2A allowed camping on vacant lots in WB for a specific period May 1st through October 31st without permit. At the time this opportunity was not extended to the entire township.

In 2017 the new ordinance and zone was adopted by the township.

In 2021 residents approached the township requesting temporary sheds throughout the camping season. Lincoln Township reviewed the whole camping policy and amended the zoning ordinance to allow the use of a total 240 square foot temporary sheds during the camping season. They also extended the camping season 1 extra month to December 1st and approved the entire township can camp on vacant lots May 1st through December 1st with approved permit.

The Lincoln Township Planning Commission is now entertaining the possibility of recommending removal of the R2A zoning district within the township as it no longer serves the purpose it was intended as relates to community zoning with R2 & R2A which are now the same and there is no need for a separate zoning designation within the township.

The planning commission has scheduled a public hearing tonight February 14th, to take public comments regarding the R2A zoning district.

Please raise your hand to be recognized to speak.

Please state your name for the record. We may ask you to spell it for the record.

Please address all comments to the Planning Commission Chair which is me.

In the spirit and interest of time, please be to the point with your comment or concern.

If you have sent a letter to the township with your opinion, it is not necessary to repeat it, however if you feel compelled to do so the commission will listen.

If any commissioner wants to address a topic or answer a question, please raise your hand to be recognized by the chair.

Please recognize that there may be differing opinions presented tonight and I ask that we all be professional and respectful of each other and allow those who want to speak to do so without interruption.

Public Comment: Correspondence received included 14 messages in opposition to removing the R-2A zone designation and 2 in favor of removing it.

Persons opposed to removing R-2A:
Bob Cooley gave his statement in opposition
Stan Ackram voiced his concern that this could be changed back
Nadine Grabowski stated her concern about future uses
Lisa Cooley is concerned about the survival of WB if this is taken away
Kamil Forys on Zoom stated his concern about losing ability to camp on their
Kylie Stanley is opposed in that it might make the area lose income from visitors

At this point Chair Blaisdell made it clear that removing R-2A does not take anything away.

Donovan Stanley feels it is best to keep it as it is
Jeff Kraft stated the same that if it is not broken, don't fix it.
Dawn Smith on Zoom encouraged the board to keep R-2A because she fears WB losing their status.
Jim Ostrowski stated that he feels that this should be done in the process of revising the Master Plan. (Jim is not yet officially on the Planning Commission.)
Member McCaslin asked Jim if he can identify where guidelines for incorporating this are located in the Master Plan process.

Persons in favor of removing R-2A:
Bill Frank

Chair Blaisdell closed the public hearing and reopened the regular meeting.

Approval of Minutes:
Approval of the regular meeting minutes of January 10, 2023. Tobin made a motion to approve the minutes as presented; Blaisdell seconded. Motion passed.

Approval of Agenda: Accepted with no changes.

Zoning Administrator's Report: See Attachment #1
No questions.

Building Inspector's Report: See Attachment #3
No questions or comments.

Ordinance Enforcement Report: See Attachment #2

McCaslin requested Tobin and Zimmerman to take a look at a problem property.

Public Comment: None

Old Business:
1. Updating Master Plan progress: Chair Blaisdell has received communication with his Wade Trim contact concerning progress on their part. They plan to attend the March 14 Planning Commission meeting.

2. R-2A – R-2 Zoning Map Districts Amendment Discussion:
Chair Blaisdell read his statement in support of deferring the decision until the Master Plan process begins and let that process make the necessary change if any. Tobin agrees with this position.

McCaslin stated her position that R-2A was the correct solution at the time, but when the amendment was approved to give the rest of the township the same camping opportunities, she feels that there is no longer a need for the R-2A zone and those references no longer have any meaning. She addressed the concern about what if the commission changes everything in six months; the commission would not eliminate camping on residential lots. She reiterated that there is nothing being taken away from White Birch; it is just to remove confusion.

Tobin made it clear that he does not want to make any votes with only three members present.

Chair Blaisdell then read the following statement of his opinion:

"I am not convinced that retaining the R2A would protect camping rights in the future. If a catastrophic event happened to change the minds of the community that camping needed to be adjusted should rest solely on concerns of the time, not based on figuring out the intent of why it was left in place even though it serves no purpose and should have been removed. We just experienced this with the R1 – R2 issue on Lake George in which a section was zoned R1 even though none of the properties conformed to R1. Much confusion, time and work went in to trying to find out if it was a mistake, was there some reason why it was R1 even though properties did not conform. It frustrated everyone because it was not correct, never was and caused confusion that did not have to happen.

I am a firm believer in our process in which we govern. As example in 2016 – 2017 when the R2a was being discussed as a solution to White Birch camping, there were several in the township that argued it was a bad idea. One member who is the lighting

rod currently for making the comment "I hate campers" which some took out of context, at the time this was all being debated this commissioner was the chair of the planning commission. I believe the position has not changed regarding camping on vacant lots however the R2A zone was adopted despite the strong opposition. The process proved it worked. We must believe in it.

In reading the letters and listening to the comments throughout this process there are clearly two distinct sides to this issue. As I read letters for instance for those who feels strongly to keep the R2A the overriding theme was "If it isn't broke don't fix it". It makes no sense to remove it. Very clear message and very direct. One could easily argue that and form a clear decision. Then I read letters that states it no longer serves a purpose and I can't understand why you would keep it? It needs to be removed. Very clear message and very direct. How does one decide when you are charged to represent both opinions?

Recently I had a conversation with someone who I believe provided a positive "value added" perspective that I had not heard with regards to the R2A designation. Even though it is not currently designated for anything other than length of time to camp, it was suggested that I think about how the R2a could potentially benefit the association / township down the road. The gated association is recognized for provide amenities i.e., clubhouse, private campground, indoor pool, warming house for students waiting for the school bus, private beaches and privately maintained roads for its members and guests and not extended but accepted by most township residents. If the association decided in the future to enhance those amenities or possibly develop new amenities might be easier to accomplish approval through the recognized R2A zone in comparison to try and secure a special use permit. I do not know enough about the mechanics of the process, and I am not fully sure this is a correct line of thinking. In theory this does make sense if it is correct. I am not in favor of giving one group of residents' favor over others in the township and would never support any effort to try to do so, however this association is self-supporting other than police, fire, and rescue. It should be easier to secure approval on such things to enhance the association.

As a commission we are charged to decide the direction to take. I am of the current thinking that because the township has started the process of our much-needed update to our master plan this is the place to work through all of this. Short of a motion until I hear the thoughts of the rest of the commission, I personally would like to defer the decision on next step until after the master plan has been completed to give us clearer vision and a road map with guidance for the best interest of our community."

Chair Blaisdell then made a motion to defer and table the next step in the Planning Commission's decision process of potential removal of the R2A Zoning designation until after the Master Plan has been completed and adopted by Lincoln Township which will most likely be sometime in the year of 2024.

Tobin seconded. Motion passed with 2 yeas and 1 nay.

New Business: None

Announcements: Next Regular Meeting will be Tuesday, March 14, at 7:00 pm.

Motion by McCaslin to adjourn the meeting; seconded by Tobin. Motion passed with all in favor. Meeting adjourned at 7:55 p.m.

Respectfully Submitted,

Deb Sherrod, Recording Secretary

Attachment #1

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
Zoning Department phone: [313] 530-2606 website: www.lincolntwp.com
e-mail: dickhassbergerl@aol.com

Zoning Administrator: ***Dick Hassberger***

Monthly Zoning Permit Report - January, 2023

Received & Approved

010-660-136-00 22 12-006	4350 Evergreen Ln	Fence-built w/o permit

Applications Denied

None

RV & Temp Storage on Vacant Lot – Received & Approved

None

Pending

010-400-001-00	101 Maple St.	Zoning Violation – Fence-Ongoing ZBA Scheduled on 08-10-2022-Appeal Denied ZA working to find a compromise on advice of counsel

Violation-Open

010-324-003-00	Lake Drive	No Zoning Permit-Deck	Letter-Work Halted-Ongoing
010-635-001-00	Maple Street	2 RVs Stored on Lot	Pending
010-100-013-00	Arbor Dr	No Zoning Permit-Deck	Pending Zoning Appl.-Stop Work in effect
010-120-004-00	E North St	Misc Ord; Violations	Multiple Visits-Ongoing
010-660-162-00	Evergreen Lane	RV Stored Inside Setback	Second Notice

Violation & Complaints-New

010-700-502-00	Fawn Terrace, E	RV not removed at season end	Second Notice
10-700-452-00	Oak Run	RV not removed at season end	Second Notice
010-720-630-00	Timber Road	Fence installed wo permit	Resolved
010-720-632-00	Elm Run	RV not removed at season end	ZA extended deadline.
010-660-136-00	Evergreen Lane	Fence installed wo Permit	Resolved
010-008-100-17	W Arthur Rd	Potential Fence Violations	Letter-01-30-23
010-500-027-00	Lakeside Dr	RV & Watercraft Storage Viol	Letter-01-30-23
010-400-011-00 -22	Maple St	RV Stored within Setbacks	Letter-01-30-23

Attachment #2

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, Michigan 48633-0239
phone: [989] 588-9841 ext. 1 website: www.lincolntwp.com e-mail: Ordinance103@gmail.com

January 2023 Ordinance Report

Debra Trim – Ordinance Enforcement Officer

Complaint 162 Windover Dr 1-6-23 drove by, took pictures of junk vehicle, open trailer full of metal scraps and debris in yard, sent letter to owner. 1-30-23 Email from renter, removed vehicle and trailer, cleaned up debris. Waiting for removal of mattress in yard.
On going.

Complaint 702 Pine St Several vehicles in disrepair in yard along with scraps of metal, wood debris in general. Took pictures 10-17-22, sent letter 10-18-22. 11-28-22 No clean up sent second letter. 12-20-22 little clean up started will send letter to acknowledge and complete. 1-6-23 Owner called, needs more time and will clean up but she is disabled and seeking help. 1-30-23 drove by, yard cleaned up.
Resolved.

Complaint 4271 Evergreen drove by took pictures. Yard full of metal and debris. Sent letter 11-30-22. Miss laid letter, mailed 12-15-22. Sent final letter 1-31-23.
On going.

Complaint 5399 Evarts Dr 5-2-22 tree fell on mobile home. Sent letter, spoke with owner in July needed time, disabled. 1-16-23 drove by mobile home removed.
Resolved.

Complaint 2261 Laurel Lane was ready for second letter but due to fire 1-4-23 the house was destroyed. Will Check for clean up and send letter if necessary.
On going.

Attachment #3

Township of Lincoln

(*Clare County*) P.O. Box 239 Lake George, MI 48633-0239 phone: [989] 588-9841 website: www.lincolntwp.com
e-mail: bor@lincolntwp.com

Clare County Community Services – Building Department [989] 539-2761 www.clareco-building.net

Permits Issued for January, 2023

(Permit Number)	(Parcel Number)	(Address)	(Brief Description)
PB23-00017	010-680-601-00	5179 Cedar Ct.	Building Repair.